

The Gorakhpur Development Authority (Fee for Inspection or Obtaining Copies of Documents and Maps) Regulations, 1983

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State of Uttar Pradesh - Act

The Gorakhpur Development Authority (Fee for Inspection or Obtaining Copies of Documents and Maps) Regulations, 1983

UTTAR PRADESH

India

The Gorakhpur Development Authority (Fee for Inspection or Obtaining Copies of Documents and Maps) Regulations, 1983

Rule

THE-GORAKHPUR-DEVELOPMENT-AUTHORITY-FEE-FOR-INSPECTION-OR-OBTAINING-COPIES-OF-DOCUMENTS-AND-MAPS-REGULATIONS-1983 of 1983

Published on 20 July 1984

Commenced on 20 July 1984

[This is the version of this document from 20 July 1984.]

[Note: The original publication document is not available and this content could not be verified.]

The Gorakhpur Development Authority (Fee for Inspection or Obtaining Copies of Documents and Maps) Regulations, 1983

Published vide Notification No. 5436/37-2-5-D.A.-(1)-81, dated July 19, 1984, published in U.P. Gazette, Extraordinary, dated 20th July, 1984

The following regulations regarding the fee to be paid for inspection or obtaining copies of documents and maps of the

Authority are made in exercise of the powers under clause (h) of sub-section (2) of Section 56 of the Uttar Pradesh Urban Planning and Development Act, 1973 (President's Act

No. 11 of 1973

) as re-enacted with modifications by the Uttar Pradesh President's Acts (Reenactment with Modifications) Act, 1974 (U.P. Act No. 30 of 1974) by the Gorakhpur Development Authority after previous approval of the State Government under sub-section (1) of Section 56 of the aforesaid Act:

1.

Short title and commencement.

(1)

These regulations may be called the Gorakhpur Development Authority (Fee for Inspection or Obtaining Copies of Documents and Maps) Regulations, 1983.

(2)

They shall come into force with effect from the date of their publication in the Gazette.

(3)

They shall be applicable to the Gorakhpur Development Area.

2.

Application.

- If a person wishes to inspect any record or document or to obtain any copy of any record or document, or extract therefrom belonging to or in the possession of the Development Authority, he shall apply in writing to the Secretary and where any other person is named or authorised for the same, to the said person, stating clearly the description of the said records or documents.

3.

Permission.

- Except as otherwise provided in these regulations, after getting the written permission of the Secretary or any other person authorised for the same, a copy of any record or document or extract therefrom belonging to or in the possession of the Development Authority shall be given and the inspection of any such record or document be allowed to any person.

4.

Permission not to be given.

- No permission shall be given for the inspection of any correspondence between the Development Authority and the Government, or any officer of the Government or in any case where the Secretary considers that public interest would suffer by its disclosure.

5.

Extracts not to be given.

- No extracts from a document shall be given which, when read apart from the rest of the file, is capable of misrepresenting the final order passed by the Development Authority, Chairman or Vice-Chairman or Secretary or any other officer of the Development Authority.

6.

Fees.

- The following fee shall be charged-

(1)

for inspection of any document or record other than a minute book or assessment list-

Rs.

(a) for the first hour or fraction of an hour

5.50

(b) for every subsequent hour or fraction thereof

2.00

(2)

for inspection of any index register for purposes of finding or tracing any documents, for each year's search

5.50

(3)

for inspection of Register of permission for Development
regarding each permission

5.50

(4)

for inspection of the Register of advances to Architects, etc.
regarding each licence

5.50

(5)

(i) for a copy of an ordinary petition or making extract from
any document or office record-

(a) for the first two hundred
words or under

3.50

(b) for every additional hundred
words or fraction

2.00

(ii) in case the copy is required urgently

}

Double the charges for (1) above

(iii) if originally is in tabular form

(6)

for Plant-

(i)

for a copy of a plan for which a tracing has to be prepared-

(a)

On Ferro Paper. - @ Rs. 5.00 per square foot of Ferro paper or part thereof for the first copy and Rs. 0.75 per square foot or part thereof for every additional copy,

(b)

On Ozalid Paper. - @ Rs. 5.00 per square foot of Ozalid paper or part thereof for first copy and Rs. 2.00 per square foot or part thereof for every additional copy,

(ii)

for a copy of a plan for which a tracing exists in the Authority's Office-

(a)

On Ferro Paper. - @ Rs. 1.75 per square foot of Ferro paper or part thereof,

(b)

On Ozalid Paper. - @ Rs. 2.00 per square foot of Ozalid paper or part thereof.

Note. - In case an applicant wants copies of the plans urgently then in addition to the copying and other charges listed above, additional fee of Rs. 5.00 per plan in case of clause (i) above and Rs. 2.00 per plan in the case of clause (ii) above shall be charged.

7.

Proceedings of Betterment Charge.

(1)

Fee to be charged for a copy of the decision of the Chairman under sub-section (4) of Section 36 of the Act, namely :
Rs.

(i)

for the first 200 words or under

...

...

3.50

(ii)

for every additional 100 words or fraction

...

...

4.00

(iii)

in case the copy is required urgently

...

...

Double of the above rates.

(2)

Fee to be charged for inspection of any record pertaining to any proceedings regarding Betterment Charge when permission to inspection is granted by the Chairman or Vice-Chairman, namely :

Rs.

(i)

for first hour

...

...

5.00

(ii)

for subsequent

...

...

3.00 per hour

8.

(1)

Orders made on applications requiring the copy urgently shall have priority over orders made on ordinary delivery applications. Orders on urgent applications and orders on ordinary applications shall have strict priority amongst themselves according to the date and serial number of each order.

(2)

A copy for which an order has been made on an urgent application shall be delivered, as a rule, not later than the working day next after the day on which the order was made.

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